

24STCV31332 24STCV31332

County: los-angeles

Division: Civil Law and Motion

Department: 731

Hearing date: 2026-09-22

Motion: APPLICATION AND ORDER FOR APPEARANCE AND EXAMINATION

Source URL:

https://www.lacourt.ca.gov/tentativeRulingNet/ui/main.aspx?casetype=civil&dept_date=LAM%2C731%2C09%2F22%2F2026

Source SHA-256: 510e8afd3819e37160c96836fafa07ba9ed03b4ae1b9cfdc5ba4697724e06e26

Case Number: 24STCV31332 Hearing Date: September 22, 2026 Dept: 731

SUPERIOR COURT OF THE STATE OF CALIFORNIA

FOR THE COUNTY OF LOS
ANGELES - CENTRAL DISTRICT

NFS LEASING, INC., a
Massachusetts corporation,

Plaintiff,

vs.

NEWPORT WHALER LLC, a
California Limited Liability Company; PIER HOUSE, LLC, a California Limited
Liability Company; SANTA MONICA WHALER, LLC, a California Limited Liability
Company, MICHAEL DOBSON, an individual, and DOES 1-10, inclusive

Defendants.

)

)

)

)

)

)

)

)

)

)

)

)

)

)

)

)

CASE NO: 24STCV31332

[TENTATIVE] ORDER RE: APPLICATION
AND ORDER FOR APPEARANCE AND EXAMINATION

Dept. 731

September 22, 2026

8:30 a.m.

Matter No. 11

Moving Party: Plaintiff/Judgment Creditor, NFS Capital, LLC f/k/a
NFS Leasing, Inc.

Opposing Party: None

Notice: OK

Background Facts

Now before the Court is Plaintiff/Judgment

Creditor, NFS Capital, LLC f/k/a NFS Leasing, Inc.'s application for appearance and examination of judgment debtor Defendant/Judgment Debtor, Michael Dobson.

Application and

Order for Appearance and Examination

a. Legal

Standard

"The judgment creditor may apply to the proper court for an order requiring the judgment debtor to appear before the court, or before a referee appointed by the court, at a time and place specified in the order, to furnish information to aid in enforcement of the money judgment." (Code Civ. Proc., § 708.110, subd. (a).) "If the judgment creditor has not caused the judgment debtor to be examined under this section during the preceding 120 days, the court shall make the order upon ex parte application of the judgment creditor." (Code Civ. Proc., § 708.110, subd. (b).) "If the judgment creditor has caused the judgment debtor to be examined under this section during the preceding 120 days, the court shall make the order if the judgment creditor by affidavit or otherwise shows good cause for the order. The application shall be made on noticed motion if the court so directs or a court rule so requires. Otherwise, it may be made ex parte." (Code Civ. Proc., § 708.110, subd. (c).)

"The judgment creditor shall personally serve a copy of the order on the judgment debtor not less than 10 days before the date set for the examination. Service shall be made in the manner specified in Section 415.10. Service of the order creates a lien on the personal property of the judgment debtor for a period of one year from the date of the order unless extended or sooner terminated by the court." (Code Civ. Proc., § 708.110, subd. (d).)

"The order shall contain the following statement in 14-point boldface type if printed or in capital letters if typed: 'NOTICE TO JUDGMENT DEBTOR. If you fail to appear at the time and place specified in this order, you may be

subject to arrest and punishment for contempt of court and the court may make an order requiring you to pay the reasonable attorney's fees incurred by the judgment creditor in this proceeding.'" (Code Civ. Proc., § 708.110, subd. (e).)¿

Discussion

After review, the Court finds sufficient grounds for relief.

First, the application is unopposed despite valid service on the judgment debtor.

Second, the judgment creditor has filed a properly filled and executed application for enforcement of the judgment entered February 10, 2026, as against judgment debtor, Michael Dobson.

Third, no grounds exist before the Court to disfavor examination of the judgment debtor for purposes of satisfying the February 10, 2026, judgment.

c. Conclusion

Plaintiff/Judgment Creditor, NFS Capital, LLC's application for appearance and examination of judgment debtor Defendant/Judgment Debtor, Michael Dobson is accordingly GRANTED.

An examination is SET for Tuesday, September 29, 2022, at 8:30 A.M. in Department 731 of the Stanley Mosk Courthouse at 111 N. Hill Street, Los Angeles, California 90012.

Defendant/Judgment Debtor, Michael Dobson is ORDERED to appear at the September 29, 2022, examination.

NOTICE

TO JUDGMENT DEBTOR. If you fail to appear at the time and place specified in this order, you may be subject to arrest and punishment for contempt of court and the court may make an order requiring you to pay the reasonable attorney's fees incurred by the judgment creditor in this proceeding.

Plaintiff/Judgment Creditor, NFS Capital, LLC, is ordered to give notice.

Parties who intend to submit

on this tentative must send an email to the court at smcdept731@lacourt.org indicating intention to submit on the tentative as directed by the instructions provided on the court website at www.lacourt.org. If the department does not receive an email indicating the parties are submitting on the tentative and there are no appearances at the hearing, the motion may be placed off calendar. If a party submits on the tentative, the party's email must include the case number and must identify the party submitting on the tentative. If the parties do not submit on the tentative, they should arrange to appear remotely.

DATED: September 22, 2026 _____

MARK C. KIM

Judge of the
Superior Court